

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,	)	
AMERICAN TRUCKING ASSOCIATIONS, INC.	)	
	)	
Complainant,	)	
	)	
v.	)	
	)	FMC Docket No. 20-14
OCEAN CARRIER EQUIPMENT MANAGEMENT	)	
ASSOCIATION, INC.; CONSOLIDATED CHASSIS	)	
MANAGEMENT, LLC; CMA CGM S.A.; COSCO	)	
SHIPPING LINES CO. LTD.; EVERGREEN LINE	)	
JOINT SERVICE AGREEMENT, FMC NO. 011982;	)	
HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK	)	
A/S; MSC MEDITERRANEAN SHIPPING	)	
COMPANY S.A.; OCEAN NETWORK EXPRESS	)	
PTE. LTD.; WAN HAI LINES LTD.; YANG MING	)	
MARINE TRANSPORT CORP.; AND	)	
ZIM INTEGRATED SHIPPING SERVICES,	)	
	)	
Respondents.	)	
	)	

RESPONDENTS' MOTION TO DISMISS

Pursuant to Rule 70 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. §502.70, Respondents, by and through their undersigned counsel, respectfully move to dismiss the complaint served on August 24, 2020 (the "Complaint") in the above captioned case. The reasons supporting this motion are set forth in detail in the attached Memorandum of Law.

WHEREFORE, Respondent respectfully requests that the motion to dismiss be granted and that an order dismissing the Complaint be issued.

Respectfully submitted,

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DATED: September 18, 2020

¹ Other than Hapag-Lloyd AG and Yang Ming Marine Transport Corporation, and as co-counsel for Evergreen Line Joint Service Agreement.